

1 ENGROSSED SENATE
2 BILL NO. 1847

By: Green of the Senate

3 and

4 Moore of the House

5
6 [Medicaid home- and community-based services -
7 eligibility - effective date -
8 emergency]
9
10

11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. AMENDATORY 56 O.S. 2021, Section 1017.3, is
13 amended to read as follows:

14 Section 1017.3. A. To be eligible for the ADvantage Waiver
15 Program, a person shall:

16 1. Qualify financially for Medicaid;

17 2. Be sixty-five (65) years of age or older or be a physically
18 disabled adult, as determined by the Social Security Administration,
19 ~~age twenty-one (21)~~ nineteen (19) years of age or older ~~without;~~

20 3. Not have:

21 a. an intellectual disability, or

22 b. a cognitive impairment, except as provided by
23 subsection B of this section;
24

1 ~~3.~~ 4. Be determined to meet the nursing facility institutional
2 level of care by the Aging Services Division of the Department of
3 Human Services;

4 ~~4.~~ 5. Reside in his or her own home ~~or,~~ a family member's home,
5 or an assisted living center contracted with the Department of Human
6 Services under the ADvantage Waiver Program; and

7 ~~5.~~ 6. Have needs that can be safely met with waiver services
8 and family or community supports.

9 B. Notwithstanding subparagraph b of paragraph 3 of subsection
10 A of this section, a person with a cognitive impairment may qualify
11 for the ADvantage Waiver Program if:

12 1. The person resides in an assisted living center contracted
13 with the Department of Human Services under the ADvantage Waiver
14 Program;

15 2. The person was already residing in such assisted living
16 center at the time he or she developed the cognitive impairment; and

17 3. The assisted living center executes a plan of accommodation
18 with the person as described in subsection H of Section 1-890.8 of
19 Title 63 of the Oklahoma Statutes.

20 SECTION 2. This act shall become effective July 1, 2026.

21 SECTION 3. It being immediately necessary for the preservation
22 of the public peace, health or safety, an emergency is hereby
23 declared to exist, by reason whereof this act shall take effect and
24 be in full force from and after its passage and approval.

1 Passed the Senate the 9th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives